

3 September 2025 / mti



29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ **1. INVICTUS GMBH (Austria)**
2. INVICTUS CABLE GMBH (Austria) 3. INVICTUS HOLDING IC GMBH (Austria)

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Dear Mesdames and Sirs,

The Secretariat acknowledges receipt of Claimant's correspondence dated 26 August 2025 and Respondents' correspondence dated 27 August 2025.

Caption

We note that the parties agree that the caption of the case should be as follows:

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ **1. INVICTUS GMBH (Austria)**
2. INVICTUS CABLE GMBH (Austria) 3. INVICTUS HOLDING IC GMBH (Austria)

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

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Constitution of the Arbitral Tribunal

The arbitration agreement provides for one arbitrator.

We understand that there is no agreement between the parties on the nomination of the sole arbitrator. We will accordingly invite the Court to appoint the sole arbitrator.

We remind you that no party may be joined after the confirmation or appointment of any arbitrator, unless all parties including the additional party otherwise agree (Article 7(1)). Unless we are informed otherwise by **5 September 2025**, the Court will appoint the sole arbitrator.

Yours faithfully,



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c.c.

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